

23STCV25137 23STCV25137

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23STCV25137 Hearing Date: August 11, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

23STCV25137

ANGELA

VANEGAS, AN INDIVIDUAL vs MCDONALD'S RESTAURANTS OF CALIFORNIA, INC.

August

11, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF ANGELA VANEGAS'S MOTION TO STRIKE OR TAX DEFENDANT'S MEMORANDUM OF COSTS.

RULING:

The Court denies the Motion.

Defendant is allowed
costs in the total requested sum of \$12,642.08.

Defendant to give notice

I.

BACKGROUND

On October 16, 2023, ANGELA VANEGAS (Plaintiff) filed a Complaint against MCDONALD'S RESTAURANTS OF CALIFORNIA, INC. (Defendant), listing Causes of Action regarding FEHA violations, including disability discrimination, harassment, and retaliation against complaining, plus wage-and-hour violations regarding some wages owed.

On February 18, 2026, Defendant filed the Motion for Summary Judgment or Summary Adjudication, based upon evidence disproving the Complaint allegations. Plaintiff had filed no Opposition to that matter. On June 10, 2026, the Court filed Judgment for Defendant.

On July 15, 2026, Plaintiff filed the Motion to Strike or Tax Costs, including because Defendant did not meet the burden to show a frivolous case, under Government Code section 12965. Plaintiff further conveys that the failure to oppose the Motion for Summary Judgment is explained by the parties' finalizing a settlement before the hearing, such that Plaintiff will be moving to vacate the Judgment.

Defendant responds that Plaintiff's Complaint includes non-FEHA claims such that Code of Civil Procedure section 1032 governs here, and all costs are recoverable.

II.

LEGAL STANDARD

A. Section 12965

"Unless the FEHA claim was frivolous, only those costs properly

allocated to non-FEHA claims may be recovered by the prevailing defendant.” (Roman v. BRE Props., Inc. (2015) 237 Cal.App.4th 1040, 1062.) “ ‘[A]n unsuccessful FEHA plaintiff should not be ordered to pay the defendant’s fees or costs unless the plaintiff brought or continued litigating the action without an objective basis for believing it had potential merit.’ ” (Higgins-Williams v. Sutter Medical Foundation (2015) 237 Cal.App.4th 78, 88.) In FEHA cases: “[T]he court, in its discretion, may award to the prevailing party, including the department, reasonable attorney’s fees and costs, including expert witness fees, except that, notwithstanding Section 998 of the Code of Civil Procedure, a prevailing defendant shall not be awarded fees and costs unless the court finds the action was frivolous, unreasonable, or groundless when brought, or the plaintiff continued to litigate after it clearly became so. (Gov. Code, § 12965, subd. (c)(6).)

Government Code Section 12965 is an exception to Code of Civil Procedure section 1032, making an award of ordinary costs discretionary, rather than mandatory. (Williams v. Chino Valley Independent Fire Dist. (2015) 61 Cal.4th 97, 108.) A trial court’s order denying attorney fees and costs pursuant to FEHA is reviewed deferentially for abuse of discretion. (Chavez v. City of Los Angeles (2010) 47 Cal.4th 970, 989.)

B. Section 1032.5

If items appear on their face to be proper, the verified memorandum of costs is prima facie evidence of their propriety, shifting the burden of proof to the attacking party. (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486-1487; Benach v. County of L. A. (2007) 149 Cal.App.4th 836, 855; Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131-132 [“trial court erred in requiring additional proof from” the party claiming costs, where the party attacking costs had the burden]; Santantonio v. Westinghouse Broad. Co. (1994) 25 Cal.App.4th 102, 116, 121 [after a prima facie showing based on verified cost memorandum, objecting party has the burden to prove costs should be disallowed]; Ladas v. Cal. State Auto. Assn. (1993) 19 Cal.App.4th 761, 773; Rappenecker v. Sea-Land Serv., Inc. (1979) 93 Cal.App.3d 256, 266. Where they do not appear regular on their face, the burden is on the claiming party. Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267. But see Acosta v. SI Corp. (2005) 129 Cal.App.4th 1370, 1380 [“if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.”]; Bach v.

County of Butte (1989) 215 Cal.App.3d 294, 308 ["Only after such costs are challenged by a motion to tax do the parties need to justify their claims by submitting documentation of the costs they have incurred."].)

III.

ANALYSIS

Plaintiff moves to strike

Defendants Memorandum of Costs pursuant to section 12965, arguing that Defendant cannot recover costs in a FEHA action absent a finding that the case was frivolous, unreasonable, or groundless when brought, or that Plaintiff continued litigating after it clearly became so.

Alternatively, Plaintiff

moves to tax the following cost items:

1.

Item 1 – Filing and motion fees: \$686.65;

2.

Item 4 – Deposition costs: \$4,747.70;

3.

Item 5 – Service of process: \$3,409.33;

4.

Item 6 – Attachment expenses / outside copying: \$133.40;

5.

Item 8 – Expert fees under Code of Civil Procedure section 998: \$2,770.00;

6.

Item 12 – Interpreter fees: \$895.00.

(Motion, 2:8-14.)

Defendant argues that

those are fully recoverable under section 1032, as specified at pages 1 through 6 of the Opposition.

Preliminarily, the Court will not apply the burden requirement of section 12965 to the inseparable FEHA-related claims including the common law Cause of Action for Wrongful Termination in Violation of Public Policy but instead applies section 1032. Code of Civil Procedure Section “section 1032 controls the recovery of ‘costs incurred as the result of defending intertwined and inseparable FEHA and non-FEHA claims.’ ” (Moreno v. Bassi (2021) 65 Cal.App.5th 244, 262.) Additionally, the wage-and-hour claims are unrelated to FEHA statutory claims, such that section 1032 applies. Indeed, a cost memorandum to the clerk under Code of Civil Procedure section 1032 would not be effective to seek costs in purely FEHA cases in which motions for costs are required. (Neeble-Diamond v. Hotel California By the Sea, LLC (2024) 99 Cal.App.5th 551, 557-558.)

Next, the Court addresses each attacked cost item, pursuant to sections 1032 and 1033.5.

1. Item 1 – Filing and

motion fees: Plaintiff seeks to tax these fees, because if Plaintiff’s future motion to vacate is granted, then Defendant will not be a prevailing party. (Motion, 7:11-18.) However, at the time of this ruling, Defendant is the prevailing party.

2. Item 4 – Deposition

costs: Plaintiff contends that Defendant failed to show that videotaped depositions were reasonably necessary and reasonable amounts. (Motion, 6:2-12.) However, Plaintiff has the burden, not Defendant. If a statute expressly allows the particular item of costs and it appears proper on its face, then the burden is on the objecting party to show the costs are unreasonable or unnecessary. (Rozanova v. Uribe (2021) 68 Cal.App.5th 392, 399; Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486 [“burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary.”].) Costs for videotaping depositions were allowed as being necessary and reasonable under the particular circumstances. (See Seever v. Copley Press, Inc. (2006) 141 Cal.App.4th 1550, 1557, disapproved on other grounds by Segal v. ASICS Am. Corp. (2022) 12 Cal.5th 651, 667.) “Section 1033.5, subdivision (a) includes as allowable costs those involved in ‘(3) Taking, videotaping, and transcribing necessary depositions including an original and one copy of those taken by the claimant and one copy

of depositions taken by the party against whom costs are allowed, and travel expenses to attend depositions.” (Gorman v. Tassajara Dev. Corp. (2009) 178 Cal.App.4th 44, 71-72.) Furthermore, the Declaration of Jemuel Gascon, filed July 29, 2026, does provide evidence supporting costs.

3. Item 5 – Service of

process: Plaintiff argues that Defendant has not provided evidence sufficient to show reasonably necessary charges. As analyzed above, Plaintiff has the burden of proof on this also.

4. Item 6 – Attachment

expenses / outside copying/Medical records: Plaintiff maintains that copies are not statutorily recoverable. The Court exercises discretion to allow copies specifically of medical records, as recoverable costs. Photocopying charges are not recoverable costs, except for exhibits and when authorized by law, including court discretion under section 1033.5, subdivision (c)(4). (Gorman v. Tassajara Dev. Corp. (2009) 178 Cal.App.4th 44, 75, 78.)

5. Item 8 – Expert fees

under Code of Civil Procedure section 998: Plaintiff’s Motion, at page 5, depends upon applying section 12960, which approach the Court has rejected above.

6. Item 12 – Interpreter

fees: \$895.00: Plaintiff against asserts that Defendant has the burden to show an expense is reasonably necessary, and reasonable in amount (Motion, 7:3-10.) As analyzed above, the Court determines that it is actually Plaintiff’s burden.

IV.

CONCLUSION

For reasons set forth herein, the Court denies the Motion.